

SENATE No. 1409

The Commonwealth of Massachusetts

PRESENTED BY:

Robyn K. Kennedy, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to reform mental health supports and increase public safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Gary Lowell</i>		
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>4/17/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>7/31/2025</i>

SENATE No. 1409

By Ms. Kennedy (by request), a petition (accompanied by bill, Senate, No. 1409) of Gary Lowell, for legislation to mandate psychiatric evaluations in a hospital emergency room if a restraint authorization is given. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to reform mental health supports and increase public safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Part I, Title XVII, Chapter 123, Section 12, Subsection A of the Massachusetts General
2 Laws is hereby amended by adding the following words immediately after “such purposes by the
3 department” but before “If an examination is not possible”: “Psychiatric evaluation in a hospital
4 emergency room is mandatory when a restraint or authorization for restraint is given by a
5 physician, qualified psychologist, qualified advanced practice registered nurse, or licensed
6 independent clinical social worker as authorized by this section. It is from a hospital emergency
7 room that a determination must be made on whether to apply for the hospitalization of such
8 person for a 3-day period at a public facility or a private facility authorized for such purpose by
9 the department.”